

MINUTES OF THE ORDINARY MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON TUESDAY, 8 FEBRUARY 2022 AT 6PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Krieg; Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Rob, together with the Acting General Manager, Director Corporate Services, Director Partnerships, Planning & Engagement, Manager Finance, Manager Assets, Manager Liveable and Active Communities, Manager Technology and Innovation, Environmental Strategies Coordinator, Acting Strategic Planning Coordinator, Principal Accountant, Environmental Strategies Officer – Development Assessment, Rural Landholder Extension Officer, Technology Support Officer, Governance & Customer Service Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies and Leave of Absence

Nil

Confirmation of Minutes of Previous Meeting

15/22 **RESOLVED** that the minutes of the Ordinary Meeting held on 11 January 2022 be confirmed.

(Councillors Colby/Rob)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Disclosure of Interest

Cr Rob declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 10.3 Lismore Lake Precinct

Nature: Cr Rob is the former President of Lismore Lake Inc

Cr Gordon declared a Non-Pecuniary, Non-Significant Conflict of Interest for the following item: 10.3 Lismore Lake Precinct

Nature: Cr Gordon is a previous committee member of Lismore Lake Inc

Public Access Session on Agenda Items

Prior to dealing with the circulated reports and associated information, a Public Access Session was held at which Council was addressed by the following:

Notice of Motions

10.2 Bentley Quarry Road Contributions

FOR	John Scarrabelotti, Blue Fattoria Group of Companies
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10.7 North Lismore Plateau

AGAINST	Aunty Thelma James
	Dot Moller
	Christine Russell
	Uncle Mickey Ryan
Councillor Adam Guise left the meeting, the time being 6:29PM Councillor Adam Guise returned to the meeting, the time being 6:30PM	
	Adele Wessell
	Hugh Nicholson
	Neil Marks
	Simon Clough
	Aunty Marie Delbridge

10.8 Richmond River Historical Society

AGAINST	Robert Smith, President, Richmond River Historical Society
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10.10 Peace Park, Nimbin

AGAINST	Natalie Meyer, Nimbin Neighbourhood & Information Centre Inc
	Matthew Brumley, Nimbin Neighbourhood & Information Centre Inc

Mayoral Minute(s) and Condolence Motions

8.1 Condolence Motion - Steve Goulding

16/22

RESOLVED that Council:

1. receive and note the Condolence motion.
2. a letter of condolence is sent to the family from the Mayor.

(Councillors Krieg/Gordon) (BP22/53)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Mayoral Minute – Staff Matter

17/22

RESOLVED that Council considers the Recission Motion to item 16.1 on the Extraordinary Council meeting held on 7 February 2021 prior to the end of this Ordinary meeting of Council in Confidential session, as the matter relates to personnel matters concerning particular individuals as per s.10A (2) (a) of the *Local Government Act*, and

Pursuant to cl. 14.16 of Council's Code of Meeting Practice, members of the public will be able to make representations as to whether that part of the meeting, to deal with the recission motion, should be closed prior to that confidential session.

(Councillors Krieg/Guise)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Mayoral Minute – Legal Matter

18/22

RESOLVED that Council delegate to the General Manager the authority to instruct Council's solicitors in the conduct of the matter of Spectrum Retail Group v Lismore City Council, including authority to resolve the appeal via conciliation or negotiation.

Section 10A (2) (g) - advice concerning litigation, or advice that would otherwise be privileged from production in legal proceedings on the ground of legal professional privilege.

Pursuant to cl. 14.16 of Council's Code of Meeting Practice, members of the public will be able to make representations as to whether that part of the meeting, to deal with the legal

matter, should be closed prior to that confidential session.

(Councillors Krieg/Hall)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Altering Order of Business (Consideration of altering the order of business to debate matters raised during Public Access Session)

19/22 **RESOLVED** that the order of business be altered to debate the following matters raised during Public Access –

- 10.7 North Lismore Plateau
- 10.2 Bentley Quarry Road Contributions
- 10.8 Richmond River Historical Society
- 10.10 Peace Park, Nimbin

(Councillors Bird/Colby)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

10.7 North Lismore Plateau

MOTION moved that:

1. Council take no further action in relation to its decision of 13 July 2021 (Item BP21/567) to hand back all Council owned land at the North Lismore Plateau to the traditional owners;
2. staff prepare suitable information and budget estimates for consideration in the upcoming Operational Plan and budget process to investigate options for Council to realise a financial return on its R1 zoned land at the North Lismore Plateau;
3. the information above include an analysis of Council's obligations and associated costs to rehabilitate the quarry having regard to the North Lismore Quarry End Use Plan 2012, the North Lismore Quarry Rehabilitation Plan 2012, with a particular focus on the C2 and C3 zoned land;
4. Council provide in principle support to transfer ownership of land owned by Council at the North Lismore Plateau to the traditional owners and prepare budget

estimates and supporting information to allow further consideration of this matter in the upcoming Operational Plan and budget process;

5. Council also investigate the possibility and process required to include the land known as 205A Terania Street, North Lismore (being Lot 3 DP1037282), in the proposed transfer of ownership to the traditional owners;
6. that Council fully supports the handing back of land following extensive consultation with NTSCorp.

(Councillors Rob/Colby)

FORESHADOWED MOTION moved that this matter be deferred to a workshop with NTSCorp and traditional custodians to be invited.

(Councillor Ekins)

At this point the meeting adjourned for a short recess, the time being 8.25PM.

The meeting resumed at 8.37PM.

20/22

DEFEATED that:

1. Council take no further action in relation to its decision of 13 July 2021 (Item BP21/567) to hand back all Council owned land at the North Lismore Plateau to the traditional owners;
2. staff prepare suitable information and budget estimates for consideration in the upcoming Operational Plan and budget process to investigate options for Council to realise a financial return on its R1 zoned land at the North Lismore Plateau;
3. the information above include an analysis of Council's obligations and associated costs to rehabilitate the quarry having regard to the North Lismore Quarry End Use Plan 2012, the North Lismore Quarry Rehabilitation Plan 2012, with a particular focus on the C2 and C3 zoned land;
4. Council provide in principle support to transfer ownership of land owned by Council at the North Lismore Plateau to the traditional owners and prepare budget estimates and supporting information to allow further consideration of this matter in the upcoming Operational Plan and budget process;
5. Council also investigate the possibility and process required to include the land known as 205A Terania Street, North Lismore (being Lot 3 DP1037282), in the proposed transfer of ownership to the traditional owners;
6. that Council fully supports the handing back of land following extensive consultation with NTSCorp.

(Councillors Rob/Colby) (BP22/47)

Voting for: Councillor Rob

Voting against: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen and Krieg

FORESHADOWED MOTION moved that this matter be deferred to a workshop with NTSCorp and traditional custodians to be invited.

(Councillors Ekins/Krieg)

AMENDMENT moved that Council hold a workshop with the process to date and the suggested process moving forward and that NTSCorp and the native title applicants to be invited.

(Councillors Bird/Colby)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

21/22

The amendment became the motion and was **RESOLVED** that Council hold a workshop with the process to date and the suggested process moving forward and that NTSCorp and the native title applicants to be invited.

(Councillors Bird/Colby) (BP22/47)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

10.2 Bentley Quarry Road Contributions

MOTION moved that Council make a submission to the proposed Bentley Quarry Development Application outlining the impact on the Kyogle to Lismore road of 100 loaded truck movements a day and the contributions needed to adequately maintain the Lismore section of this road.

(Councillors Ekins/Bird)

AMENDMENT moved that:

1. Council formally endorses the Lismore City Council submission to Richmond Valley Council regarding the Bentley Quarry regarding the significant impact projected truck movements would have on Council's road network.
2. as outlined in the LCC submission that Council reinforces the opinion of staff that of all levies collected from the quarry, 55% of the collected funds should be directed to Lismore City Council, for which these levies can be used in a litigable manner to maintain the roads (primarily Kyogle Road) within our Local Government Area, which will assist in negating the impact of the Quarry on the ratepayers of Lismore.
3. the General Manager write to RVC to inform them of this resolution.

(Councillors Bird/Cook)

FORESHADOWED AMENDMENT moved that Council formally endorses the Lismore City Council submission to Richmond Valley Council regarding the Bentley Quarry regarding the significant impact projected truck movements would have on Council's road network.

(Councillor Rob)

22/22 On submission to the meeting the amendment was **DEFEATED** that:

1. Council formally endorses the Lismore City Council submission to Richmond Valley Council regarding the Bentley Quarry regarding the significant impact projected truck movements would have on Council's road network.
2. as outlined in the LCC submission that Council reinforces the opinion of staff that of all levies collected from the quarry, 55% of the collected funds should be directed to Lismore City Council, for which these levies can be used in a litigable manner to maintain the roads (primarily Kyogle Road) within our Local Government Area, which will assist in negating the impact of the Quarry on the ratepayers of Lismore.
3. the General Manager write to RVC to inform them of this resolution.

(Councillors Bird/Cook) (BP22/42)

Voting for: Councillors Bird, Colby, Cook, Ekins and Guise

Voting against: Councillors Bing, Gordon, Hall, Jensen, Krieg and Rob

23/22 FORESHADOWED AMENDMENT moved that Council formally endorses the Lismore City Council submission to Richmond Valley Council regarding the Bentley Quarry regarding the significant impact projected truck movements would have on Council's road network.

(Councillors Rob/Bird) (BP22/42)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Guise, Hall, Jensen, Krieg and Rob

Voting against: Councillor Gordon

24/22 The amendment became the motion and was **RESOLVED** that Council formally endorses the Lismore City Council submission to Richmond Valley Council regarding the Bentley Quarry regarding the significant impact projected truck movements would have on Council's road network.

(Councillors Rob/Bird) (BP22/42)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Guise, Hall, Jensen, Krieg and Rob

Voting against: Councillor Gordon

10.8 Richmond River Historical Society

- 25/22 MOTION moved that since the Richmond River Historical Society is an incorporated association and not a committee of Council, Council no longer nominates a Councillor to sit on the Management Committee of that independent organisation.

(Councillors Rob/Hall) (BP22/49)

- 26/22 AMENDMENT moved and **DEFEATED** that Council investigate entering into a Memorandum of Understanding with Richmond River Historical Society to allow for councillors to sit as observers on the committee.

(Councillors Cook/Bird) (BP22/49)

Voting for: Councillors Bird, Cook, Ekins and Guise

Voting against: Councillors Bing, Colby, Gordon, Hall, Jensen, Krieg and Rob

- 27/22 On submission to the meeting an amendment was made and **RESOLVED** that:

1. since the Richmond River Historical Society is an incorporated association and not a committee of Council, Council no longer nominates a Councillor to sit on the Management Committee of that independent organisation.
2. Council work with the Society to determine the best way forward to include a councillor(s) in its committee process.

(Councillors Rob/Hall) (BP22/49)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

10.10 Peace Park, Nimbin

That Council defer this matter until the March meeting to allow councillors time to further consult with the community.

(Councillors Rob/Krieg)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Bird, Cook, Ekins and Guise

Notice of Motions

10.1 HUB material

MOTION moved that all archived HUB material be restored.

(Councillors Rob/Hall)

28/22 AMENDMENT moved that if a matter comes before council, if a councillor request is received, or a briefing that was also dealt with by the previous term of council, all materials relevant to that item from the previous term be made available to the current councillors.

(Councillors Cook/Bing)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

29/22 The amendment became the motion and was **RESOLVED** that if a matter comes before council, if a councillor request is received, or a briefing that was also dealt with by the previous term of council, all materials relevant to that item from the previous term be made available to the current councillors.

(Councillors Cook/Bing) (BP22/48)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Continuation of Meeting

30/22 **RESOLVED** that the time being 10.25pm the meeting continue to the end of the business paper.

(Councillors Rob/Hall)

Voting for: Councillors Bing, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Bird, Ekins and Guise

Councillor Elly Bird left the meeting, the time being 10:28PM

Councillor Elly Bird returned to the meeting, the time being 10:29PM

Altering Order of Business

31/22 **RESOLVED** that that the order of business be altered to debate the following matters:

- 14.5 Tender T2020-11 - Lismore City Regional Sports Hub - 140 Seat Covered Grandstand
- 14.6 Tender T2021-27 - Pedestrian Spine Construction - Lismore City Hall to Wilsons River

(Councillors Rob/Hall)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

At this point the meeting adjourned for a short recess, the time being 10.33PM.

The meeting resumed at 10.46PM.

14.5 Tender T2020-11 - Lismore City Regional Sports Hub - 140 Seat Covered Grandstand

32/22 **RESOLVED** that:

1. In accordance with Clause 178(1)(a) of the *Local Government (General) Regulation 2005*, Council accept the tender from Steel Post and Rail Pty Ltd for Tender T2020-11 Lismore City Regional Sports Hub – 140 Seat Covered Grandstand, for the sum of \$382,045, excluding GST.
2. Council authorise the General Manager to finalise and execute the contract and any other documentation required to give effect to this resolution.

(Councillors Rob/Gordon) (BP22/13)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.6 Tender T2021-27 - Pedestrian Spine Construction - Lismore City Hall to Wilsons River

33/22 **RESOLVED** that:

1. In accordance with Clause 178(1)(a) of the *Local Government (General) Regulation 2005*, Council accept the tender from Desire Constructors Pty Ltd for Tender T2021-27

Pedestrian Spine Construction – Lismore City Hall to Wilsons River, for the sum of \$292,282.66, excluding GST.

2. Council authorise the General Manager to finalise and execute the contract and any other documentation required to give effect to this resolution.

(Councillors Rob/Gordon) (BP22/17)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Altering Order of Business

- 34/22 **RESOLVED** that the order of business be altered to debate Item 14.9 Authorisation to General Manager to approve projects from existing panel arrangements.

(Councillors Krieg/Rob)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

14.9 Authorisation to General Manager to approve projects from existing panel arrangements

- 35/22 **RESOLVED** that the General Manager:

1. be given delegated authority to approve tenders and purchases from existing panel arrangements with Council and/or Prescribed Entities without a fixed upper limit of expenditure from an approved budget or from specific grant projects/programs.
2. report to councillors via City Notes the details of any purchases above \$250,000 (incl. GST).

(Councillors Cook/Bird) (BP22/51)

Voting for: Councillors Bing, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Bird, Ekins and Guise

Confidential Matters – Closed Council Meeting

36/22 **RESOLVED** that:

1. Council moves in confidential session to deal with the Recission Motion to item 16.1 on the Extraordinary Council meeting held on 7 February 2022 and the Mayoral Minute on the legal matter.
2. At the end of that closed part of the meeting, and upon resumption of the meeting in public session, the meeting be adjourned to Wednesday 16 February 2022 at 6pm to consider remaining items of business on the agenda.

(Councillors Gordon/Rob)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Bird, Cook, Ekins and Guise

Resumption of Open Council

When the Council had resumed its former sitting, the Mayor reported that Council, meeting in Closed Session, had determined:

Mayoral Minute

That Council rescind Item 16.1 Confidential Mayoral Minute of the Extraordinary Meeting on 7 February 2022 was DEFEATED.

(Councillors Guise/Bird)

Voting for: Councillors Bird, Cook, Ekins and Guise

Voting against: Councillors Bing, Colby, Gordon, Hall, Jensen Krieg and Rob

Mayoral Minute

That Council delegate to the General Manager the authority to instruct Council's solicitors in the conduct of the matter of Spectrum Retail Group v Lismore City Council, including authority to resolve the appeal via conciliation or negotiation.

(Councillors Krieg/Rob)

Voting for: Councillors Bing, Colby, Cook, Gordon, Hall, Krieg and Rob

Voting against: Councillors Bird, Ekins, Guise and Jensen

The time being 11.58pm the meeting was adjourned until Wednesday 16 February at 6.00pm.

Present

Mayor, Councillor Krieg; Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Rob, together with the Acting General Manager, Director Corporate Services, Director Infrastructure Services, Director Partnerships, Planning & Engagement, Manager Finance, Manager Assets, Manager Liveable and Active Communities, Manager Technology and Innovation, Environmental Strategies Coordinator, Acting Strategic Planning Coordinator, Principal Accountant, Environmental Strategies Officer – Development Assessment, Rural Landholder Extension Officer, Technology Support Officer, Governance & Customer Service Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies and Leave of Absence

Nil

10.3 Lismore Lake Precinct

That:

1. Council includes the Lismore Lake Precinct in the Community Strategic Plan, Delivery Program, and the Operational Plan as an unfunded line item;
2. Council enters a License Agreement with Lismore Lake Incorporated, allowing Lismore Lake Incorporated to:
 - a. secure insurance at no cost to Council to cover volunteers;
 - b. undertake bush regeneration work at the Lismore Lake Precinct at no cost to Council according to the previously submitted and approved Lismore Lake Incorporated Landcare bush regeneration plan;
 - c. undertake other works at the Lismore Lake Precinct at no cost to Council subject to the current Bob Gates Memorial Recreation Reserve Plan of Management and staff oversight and final determination; and
 - d. actively seek out and pursue State and Federal untied funding grants at no cost to Council to be considered by Council prior to being accepted or rejected.

Councillor Rob withdrew the motion.

10.4 Waste vouchers

That:

1. staff prepare suitable information and budget estimates for consideration in the upcoming Operational Plan and Budget process relating to the possible annual allocation of two (2) waste vouchers linked to each eligible rateable property in the local government area, which are to expire at the end of each financial year if not used;
2. the future allocation of waste vouchers be done electronically via a Waste Vouchers Database, to be claimed by individuals presenting photo identification including an eligible address when accessing a Council waste facility to dispose of waste using a waste voucher; and
3. staff record the number of waste vouchers used and the amount of waste being deposited at Council waste facilities in the Waste Vouchers Database, and an annual report be presented to Council outlining these details and the cost of the waste vouchers program.

Councillor Rob withdrew the motion.

10.5 Browns Creek drain

MOTION moved that:

1. Council takes no further action in relation to its decision of 12 October 2021 (Item BP21/810) relating to Browns Creek.
2. Council be provided as part of the of the 2022/23 budget and operational plan process a proposal and costings for a review of the Urban Stormwater Management Plan and maintenance schedules to ensure that Browns Creek drainage system be thoroughly cleaned of debris and other material on a regular basis that may restrict flow.

(Councillors Rob/Hall)

FORESHADOWED AMENDMENT moved that Council be provided as part of the of the 2022/23 budget and operational plan process a proposal and costings for a review of the Urban Stormwater Management plan and maintenance schedules to ensure that Browns Creek drainage system be thoroughly cleaned of debris and other material on a regular basis that may restrict flow.

(Councillors Cook/Ekins)

37/22

RESOLVED that:

1. Council takes no further action in relation to its decision of 12 October 2021 (Item BP21/810) relating to Browns Creek.
2. Council be provided as part of the of the 2022/23 budget and operational plan process a proposal and costings for a review of the Urban Stormwater Management Plan and maintenance schedules to ensure that Browns Creek

drainage system be thoroughly cleaned of debris and other material on a regular basis that may restrict flow.

(Councillors Rob/Hall) (BP22/46)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen and Rob

Voting against: Councillors Bird, Cook, Ekins, Guise and Krieg

10.6 Airport Fees

MOTION moved that Council amend the airport fees to:

1. annual subscriptions as prior to landing fee increases on 1 July 2021
2. current fee structure remain for the weekend/recreational pilots

(Councillors Gordon/Rob)

38/22 AMENDMENT moved and was **DEFEATED** that Council defer this proposal to a workshop as part of the budget and operational plan development for 2022/2023 in the coming weeks.

(Councillors Cook/Ekins) (BP22/41)

Voting for: Councillors Bird, Ekins, Gordon and Guise

Voting against: Councillors Bing, Colby, Cook, Hall, Jensen, Krieg and Rob

39/22 On submission to the meeting the motion was **RESOLVED** that Council amend the airport fees to:

1. annual subscriptions as prior to landing fee increases on 1 July 2021
2. current fee structure remain for the weekend/recreational pilots

(Councillors Gordon/Rob) (BP22/41)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillors Bird, Cook, Ekins and Guise

10.9 Councillor fee reduction

MOTION moved that the councillors' fees remain the same and the mayoral fee revert back to the pre-July 2021 rate.

(Councillors Krieg/Ekins)

FORESHADOWED MOTION that councillors' fees be reverted back to the pre-July 2021 rate and reassess in February 2023 to coincide with future budget planning.

(Councillor Rob)

Following debate Councillors Krieg and Ekins withdrew the motion.

10.11 Additional Committee Delegates

MOTION moved that membership to the Aboriginal Advisory Group, Access and Inclusion Advisory Group, Nimbin Advisory Group, and the Koala Implementation Group be amended to include 'two (2) or more councillors'.

(Councillors Rob/Gordon)

AMENDMENT moved that this council supports in principle that any review of the terms of reference for Aboriginal Advisory Group, Access and Inclusion Advisory Group and the Nimbin Advisory Group should include a proposal to increase membership of the group to two (2) or more councillors.

(Councillor Cook)

Following debate Councillor Rob withdrew the motion.

10.12 Business Activation Working Group

40/22

RESOLVED that the Terms of Reference for the Business Activation Working Group be amended so that:

1. section 4.2 stipulates the Group will include a maximum of 11 members in total, with an additional position described as '1 elected councillor as nominated by Council' to be added to the membership;
2. the words 'and chair' be removed from section 5.2; and
3. the position described as '1 elected councillor as nominated by the Mayor' in section 4.2 be changed to read 'Lismore City Council Mayor (Chairperson) or delegate'.

(Councillors Rob/Gordon) (BP22/61)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

10.13 Asset, Infrastructure & Finance Committee

Council prepare Terms of Reference to establish an 'Asset, Infrastructure & Finance Committee' to commence in July 2022, with key roles to identify and consider solutions to better maintain and improve existing assets, to identify and consider suitable State and Federal grant funding opportunities, and to regularly review how Council is progressing.

Councillor Rob withdrew the motion.

Questions with Notice

11.1 Special Business Rate Variation Levy

Can the General Manager please explain why responses to Councillor requests for access to information relating to the establishment and purpose of the Special Business Rate Variation Levy (SBRVL) are either being ignored or only a summary, as opposed to access to documents, is being provided, seemingly in conflict with section 335(f) of the *Local Government Act 1993*, which requires 'that the mayor and other councillors are given timely information and advice and the administrative and professional support necessary to effectively discharge their functions'?

Councillor Rob withdrew the motion.

11.2 South Lismore Sewage Treatment Plant

Can the General Manager please provide Council with the original estimated cost of the recent South Lismore Sewage Treatment Plant (STP) upgrade, details relating to how the upgrade was funded, a summary outlining any problems identified since the upgrade, the estimated cost of rectifying any problems identified since the upgrade, details relating to how any rectification work has been or will be funded, and an indication of when the South Lismore STP will be complete and fully operational?

Councillor Rob withdrew the motion.

11.3 Responses to Councillor Requests for Cost Breakdowns

Can the General Manager please explain why responses to councillor requests for cost breakdowns relating to Council expenditure are not being provided in detail sufficient to identify each line item included in any higher level cost figure totals, considering the widespread use of computers, accounting software, and accounting record requirements, as provided for in section 412 of the *Local Government Act 1993*, which requires Council to keep such accounting records as are necessary to correctly record and explain its financial transactions and its financial position?

Councillor Rob withdrew the motion.

Matters Arising

13.1 Social Justice and Crime Prevention Committee

MOTION moved that the Social Justice and Crime Prevention Committee be discontinued.

(Councillors Bird/Guise)

FORESHADOWED MOTION that a workshop be held to assist with exploring the purpose, membership and Terms of Reference in conjunction with Police and community representatives.

(Councillors Cook/Jensen)

41/22 On submission to the meeting the motion was **DEFEATED** that the Social Justice and Crime Prevention Committee be discontinued.

(Councillors Bird/Guise) (BP22/37)

Voting for: Councillors Bird, Ekins and Guise

Voting against: Councillors Bing, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob

42/22 On submission to the meeting the foreshadowed motion became the motion and was **RESOLVED** that a workshop be held to assist with exploring the purpose, membership and Terms of Reference in conjunction with Police and community representatives.

(Councillors Cook/Jensen) (BP22/37)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

Reports of the General Manager

14.1 Transfer Part of Crown Road to Council - Crown Road adjoining Waterford Park - Eastern Estate, Goonellabah

43/22

RESOLVED that:

1. Council submit an application to NSW Department of Industry requesting part of the Crown road off Taylor Road, Chilcotts Grass, as described in this report, be transferred to Lismore City Council.
2. to meet the criteria of NSW the Department of Industry, the General Manager submit a letter with the application giving consent to the transfer of Crown road as described in this report.
3. Council staff coordinate the timing of the Crown road transfer with a Subdivision Works Certificate for the proposed access road.

(Councillors Rob/Cook) (BP21/914)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.2 Classification of Drainage Reserve to be vested in Council as Operational Land - Alternative Way, Nimbin

44/22

RESOLVED that in accordance with Section 31 of the *Local Government Act*, 1993 the land described as Lot 91 in the stamped approved subdivision plan for DA12/153 as annexed to this report and marked with the statement 'Drainage Reserve' be classified Operational land.

(Councillors Bird/Rob) (BP21/945)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Councillor Elly Bird left the meeting, the time being 7:49PM

14.3 Partial Land Acquisitions - Fixing Country Bridges and Bridge Renewal Program Grant funded Projects

45/22

RESOLVED that:

1. Council endorse the partial land acquisitions for road widening purposes associated with bridge reconstruction projects, in accordance with the concept plans attached to the report for:
 - a) Part Lot 24, DP 702911; known as 55 Stony Chute Road, Nimbin
 - b) Part Lot 1, DP 250120; known as 1078 Eltham Road, Pearces Creek
 - c) Part Lot 300, DP 863374; known as 203 Mackie Road, Rosebank
 - d) Part Lot 301, DP 863374 known as 2 Hull Road, Rosebank
 - e) Part Lot 8, DP 755747; known as 54 Rosehill Road, Tuncester
 - f) Part Lot 1, DP 828423; known as 329 Kyogle Road, Tuncester.
2. the landowners' costs associated with the land acquisitions be borne by Council including but not limited to survey, Council fees, landowners' reasonable legal and valuation fees, and plan registration fees.
3. the General Manager be delegated authority to negotiate the compensation payable to the landowners and sign all documents necessary to acquire the lands necessary for road purposes.

(Councillors Rob/Gordon) (BP21/955)

Voting for: Councillors Bing, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Absent: Councillor Bird

Councillor Elly Bird returned to the meeting, the time being 7:51PM

14.4 Delivery Program - Progress Report - Quarter 2 - October to December 2021

46/22

RESOLVED that Council receive and endorse the attached Delivery Program Progress Report for the period October to December 2021.

(Councillors Bird/Bing) (BP21/968)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.7 Investments - November 2021, December 2021 and January 2022

47/22 **RESOLVED** that the report be received and noted.

(Councillors Bird/Colby) (BP22/32)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.8 December 2021 Quarterly Budget Review Statement

48/22 **RESOLVED** that Council adopt the attached December 2021 Quarterly Budget Review Statement.

(Councillors Colby/Bird) (BP22/40)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

14.10 Councillors Expenses and Facilities Policy - July 2021 to December 2021 Reporting

49/22 **RESOLVED** that Council receive and note the report.

(Councillors Ekins/Bird) (BP21/971)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen and Krieg

Voting against: Councillor Rob

Committee Recommendations

15.1 Traffic Advisory Committee Minutes - Meetings of 24 November 2021 and 19 January 2022

- 50/22 **RESOLVED** that the minutes be received and adopted and the recommendations contained therein be adopted.
- (Councillors Bing/Jensen) (BP22/28)
- Voting for:** Councillors Bing, Bird, Colby, Cook, Gordon, Hall, Jensen, Krieg and Rob
- Voting against:** Councillors Ekins and Guise

Documents for Signing and Sealing

16.1 Documents for Signing

- 51/22 **RESOLVED** that Council note the following occupancy agreement be executed as negotiated under delegated authority by the General Manager:
- A. **Option Lease to Stockpot Kitchen Pty Ltd**, 133 Molesworth Street, Lismore and Suite 1A, 133 Molesworth Street, Lismore (being old Art Gallery Building and Café), for café and restaurant (downstairs) office, storage, flood evacuation and staff room associated with café (upstairs) (ref: AF20/1870).
- (Councillors Bird/Cook) (BP21/912)
- Voting for:** Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob
- Voting against:** Nil

Closure

This concluded the business and the meeting terminated at 8.15pm.

CONFIRMED this > > 2021 at which meeting the signature herein was subscribed.

MAYOR